



A COMMUNITY OF CHOICE

Planning and Development Department

2101 O'Neil Avenue, Suite 202, Cheyenne WY 82001
(Phone) 307-637-6282 (Fax) 307-637-6366

MEMO

To: Honorable Mayor Patrick Collins and Members of the City Council
From: Seth Lloyd
Subject: UDC-22-00281 / Senior Center Zone Change
Date: September 12, 2022

Background:

The item for consideration is a *Zoning Map Amendment (zone change)*. This is approved by Ordinance.

The proposed Governing Body review schedule is as follows:

- Introduction and Referral 9/12/2022
- Public Services Committee 9/20/2022
- Second reading 9/26/2022
- Public Services Committee 10/4/2022
- Third and final reading 10/10/2022

Planning Commission Recommendation:

The Planning Commission heard this item at their September 6, 2022 meeting and recommended the Governing Body approve this application.

The Planning Commission Staff report is attached and has not been changed.

Attachments:

1. Ordinance
2. Planning Commission Staff Report

ORDINANCE NO. _____

ENTITLED: “AN ORDINANCE AMENDING THE OFFICIAL ZONING MAP OF THE CITY OF CHEYENNE CHANGING THE ZONING CLASSIFICATION FROM MUB MIXED-USE BUSINESS EMPHASIS TO CB COMMUNITY BUSINESS FOR LAND LOCATED NORTH OF PERSHING BOULEVARD, EAST OF COLLEGE DRIVE.”

BE IT ORDAINED BY THE GOVERNING BODY OF THE CITY OF CHEYENNE, WYOMING:

Section 1. That the owner(s) of the property described herein has (have) applied for a zoning map amendment (“zone change”) for said property in accordance with Section 2.2.1, Zoning Map Amendment, of the Cheyenne Unified Development Code (“UDC”).

Section 2. That on September 6, 2022, the City of Cheyenne Planning Commission conducted a public hearing, reviewed the proposed zone change that is the subject of this ordinance, and recommended approval of said zone change.

Section 3. That the Governing Body of the City of Cheyenne finds that the zone change that is the subject of this ordinance meets the criteria specified in Section 2.2.1.d of the UDC.

Section 4. That, in accordance with Section 2.2.1, Zoning Map Amendment, Section 5.1.2, Zoning Districts Established, and Section 5.1.3, Official Zoning Map, of the UDC, the aforementioned application is hereby approved and the zoning classification of the real property described as the S½ of the S½ of Tracts 27 & 28 Sunnyside Addition, 2nd Filing plus (Book 1345, Page 800, 8640 square feet) vacated Monroe Avenue between said S½ S½ tracts and Cox Subdivision Lot 6, Block 2; and Lots 4 and 5, Block 4, Foxcrest Subdivision, City of Cheyenne, Laramie County, Wyoming, is hereby changed to CB Community Business.

Section 5. That the City Engineer is hereby authorized and directed to alter and amend the Official Zoning Map as described in Section 5.1.3 of the UDC to comply with the zone change as described in Section 4 above when this ordinance takes effect in accordance with Section 7 below.

Section 6. Sections, paragraphs, sentences, clauses and phrases of this ordinance are severable. If any section, paragraph, sentence, clause, or phrase of this ordinance is declared unconstitutional, such unconstitutionality shall not affect any of the remaining sections, paragraphs, sentences, clauses, and phrases.

Section 7. That this ordinance shall be in full force and effect upon its approval and publication.

FIRST READING:

SECOND READING:

THIRD AND FINAL READING:

PATRICK COLLINS, MAYOR

(SEAL)

ATTEST:

KRISTINA F. JONES, CITY CLERK

publish date: _____



A COMMUNITY OF CHOICE

Planning and Development Department

2101 O'Neil Avenue, Suite 202, Cheyenne WY 82001

(Phone) 307-637-6282 (Fax) 307-637-6366

CITY OF CHEYENNE PLANNING COMMISSION SEPTEMBER 6, 2022 STAFF REPORT

FILE: UDC-22-00281: Senior Center – Zoning Map Amendment

REQUEST: A request to rezone approximately 2.0 acres of land from MUB Mixed-use Business Emphasis to CB Community Business

LOCATION: North of Pershing Blvd., east of College Drive

APPLICANT: T C Solutions - Ben Hornok

OWNER: Cheyenne Housing Authority

ZONING: MUB Mixed-use Business Emphasis

FUTURE LAND USE: Mixed-use Business

PURPOSE: To allow the development of an extended senior activity center (connecting into the current building)

PREPARED BY: Seth Lloyd, Planner II - Development



RECOMMENDED MOTION:

Move to **approve** the rezoning of Lots 4 and 5, Block 4, Foxcrest Subdivision and the south half of the south half of Tracts 27 and 28 and 8640sqft of vacated Monroe Avenue adjacent thereto, Sunnyside Addition, 2nd Filing to CB Community Business as shown in the attached zone change map, noting that the project meets the review criteria for approval.

APPLICABLE CITY CODE SECTION(S) AND PLANS:

- UDC 2.2.1 Zoning Map Amendment
- UDC Article 5
- PlanCheyenne

BACKGROUND:

This zone change application proposes changing the zoning from MUB Mixed-use Business Emphasis to CB Community Business for 2.0 acres of land.

The proposed CB zoning allows variety of commercial uses in an automobile-centric format.

The land is currently partially vacant and partially occupied by an existing senior center. The expansion of the senior center on this site is an approved 6th penny ballot measure. The current MUB zone would allow this development, but the MUB zone requires buildings to be brought closer to the street, occupy a certain percentage of the lot frontage, and limits the parking to the side of the building. These design standards make developing the site with a senior center physically linked to the existing center difficult. The CB zoning would also allow the proposed use but would be less onerous in terms of site layout.

SURROUNDING LAND USE AND ZONING:

	Future Land Use Designation	Zoning District	Land Use
Subject Site	Mixed-use Commercial	MUB Mixed-use Business Emphasis	Vacant, Senior Center
North	Mixed-use Commercial	MUB	Townhomes/Multifamily
South	Mixed-use Commercial	MUB	Multifamily
East	Mixed-use Commercial	MUB	Veterinary Clinic
West	Mixed-use Commercial	CB	Gas Station

ANALYSIS OF APPLICATION CONFORMANCE WITH REVIEW CRITERIA:

Should the Planning Commission wish to recommend approval of the Zoning Map Amendment, the Commission must make the following findings required in UDC 2.2.1.d. A detailed analysis is below:

- 1) The application is in accordance with the development policies and physical patterns identified in the Comprehensive Plan. (UDC 2.2.1.d.1)**

PlanCheyenne encourages growth within the Urban Service Boundary and the maximization of existing infrastructure. This property is within the Urban Service Boundary, in an area with existing infrastructure.

The location associated with three major streets (College, Pershing, and Lincolnway) would encourage the development of automobile-oriented commercial uses in this area. PlanCheyenne encourages the flexibility to be responsive to market demands.

The Future Land Use Designation for this property and the surrounding area is Mixed-use Commercial. According to comprehensive plan the optimal City zone for the subject property's future land use designation is MUB Mixed-use Business Emphasis, although a variety of commercial, residential, and mixed-use zones could also be appropriate based on the context of the site. The proposed zoning is CB, a commercial-emphasis zone. Mixed-use Commercial areas are encouraged to develop with primarily commercial uses, but public, residential, and other employment uses are also encouraged.

This property is also designated as a Mixed-use Commercial Activity Center on the Future Land Use Map. Activity Centers are intended for a mix of commercial and residential uses with access to regional transportation. Regional-serving civic uses is an expected component of an Activity Center. The proposed CB zone is considered one of the optimal zones for activity centers of this type.

The policies of PlanCheyenne are supportive of this proposed zone change. The future land use plan encourages more commercial-style zoning at this location.

The proposed zone change largely **complies** with review criterion 1.

2) The application is compatible with nearby property, specifically considering existing zoning, the Comprehensive Plan, and any other official plans and policies created under the guidance of that plan for these areas; (UDC 2.2.1.d.2)

Surrounding property are zoned with the MUB and CB zoning. MUB is the current zoning of this parcel and CB is the proposed zoning. The proposed zoning is also compatible with the future land use designation of Mixed-use Commercial and an activity center.

The proposed zone change for the subject property **complies** with review criterion 2.

3) The suitability of the subject property for development according to the standards and uses of the existing zoning district, compared to the suitability of the subject property for development according to the standards and uses of the proposed zoning district (UDC 2.2.1.d.3)

The MUB zone encourages buildings to be built close to the street with limited side parking and primarily rear parking areas. Pershing Plaza to the southwest of this proposal exemplifies the type of development pattern. CB zoning is expected to develop with buildings further from the street and side or front parking lots are acceptable. The existing development to the west and east exemplify this development pattern. The CB zone also has less-specific requirements when

it comes to building design. The allowed uses are similar, although CB allows a little more intensity in commercial development and allows less residential options.

The proposed zone change **complies** with review criterion 3.

4) The ability of the subject property and surrounding vicinity to be developed according to the Subdivision Standards in Article 4 considering the proposed zoning (UDC 2.2.1.d.4)

Block sizes are typically based on the future land use designation, and that is not proposed to be changed with this application. However, the intent statement of the CB zone generally allows larger blocks than that of the MUB zone, and the block this property is part of is larger in size (and likely to increase in size when the Pershing/US 30 intersection is re-aligned).

The proposed zone change for the subject property **complies** with review criterion 4.

5) The ability of the application to support the Intent and Applicability statements of the proposed zoning district and achieve the Design Objectives of any specific standards. (UDC 2.2.1.d.5)

The CB zone is intended to develop with regional-serving retail, employment, service, and civic uses in activity centers or areas designated Community Business by the comprehensive plan. This area is designated as an activity center by PlanCheyenne and has access to major transportation routes.

The proposed zone change for the subject property **complies** with review criterion 5.

6) The ability of all potential future development to meet all applicable standards for development in the proposed zoning district, including other development options if any specific development proposed in association with the application is not executed after approval. (UDC 2.2.1.d.6)

The specific development proposed in concert with this rezoning is a public facility (senior center) which will likely include a food service component and potentially an entertainment component. Should the proposed development not be executed after approval, there are a number of commercial uses which would be eligible to be established at this location. Multifamily residential uses could also be appropriate.

The proposed zone change **complies** with review criterion 6.

7) The review and recommendations of other reviewing bodies. (UDC 2.2.1.d.7)

No reviewing agencies provided recommendations regarding the proposed zone change.

The proposed zone change for the subject property **complies** with review criterion 7.

8) Whether the application will harm the public health, safety, or general welfare. (UDC 2.2.1.d.8)

City staff is satisfied that this proposed zone change would not adversely affect the public health, safety, or general welfare.

The proposed zone change for the subject property **complies** with review criterion 8.

CONFORMANCE WITH APPLICABLE PLANS:

The project is located in an area covered by the following plans:

- PlanCheyenne

Conformance with PlanCheyenne is covered by review criterion 1.

STAFF REVIEW:

Through the review process, no review comments were received.

CONCLUSION:

Staff is satisfied that the application meets the review criteria set forth in UDC 2.2.1.(d). The CB zone is appropriate based on the comprehensive plan and context of the property.

ALTERNATIVES:

1. Recommend approval of the zoning amendment as submitted by the applicant (**Staff Recommendation**).
2. Recommend approval of the zoning amendment subject to conditions or modifications.
3. Recommend denial of the zoning amendment based on findings of denial. The Planning Commission must conclude that the project does not meet all the review criteria. As part of the motion, findings for denial must be stated.
4. Postpone the zoning amendment until issues identified during the meeting can be resolved.

General Information Regarding Alternatives:

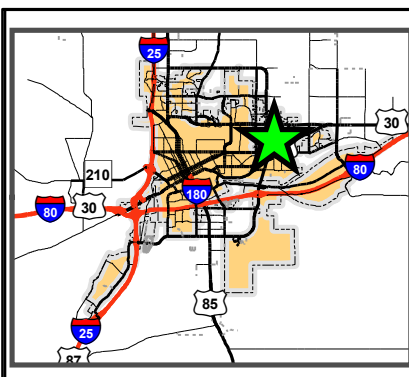
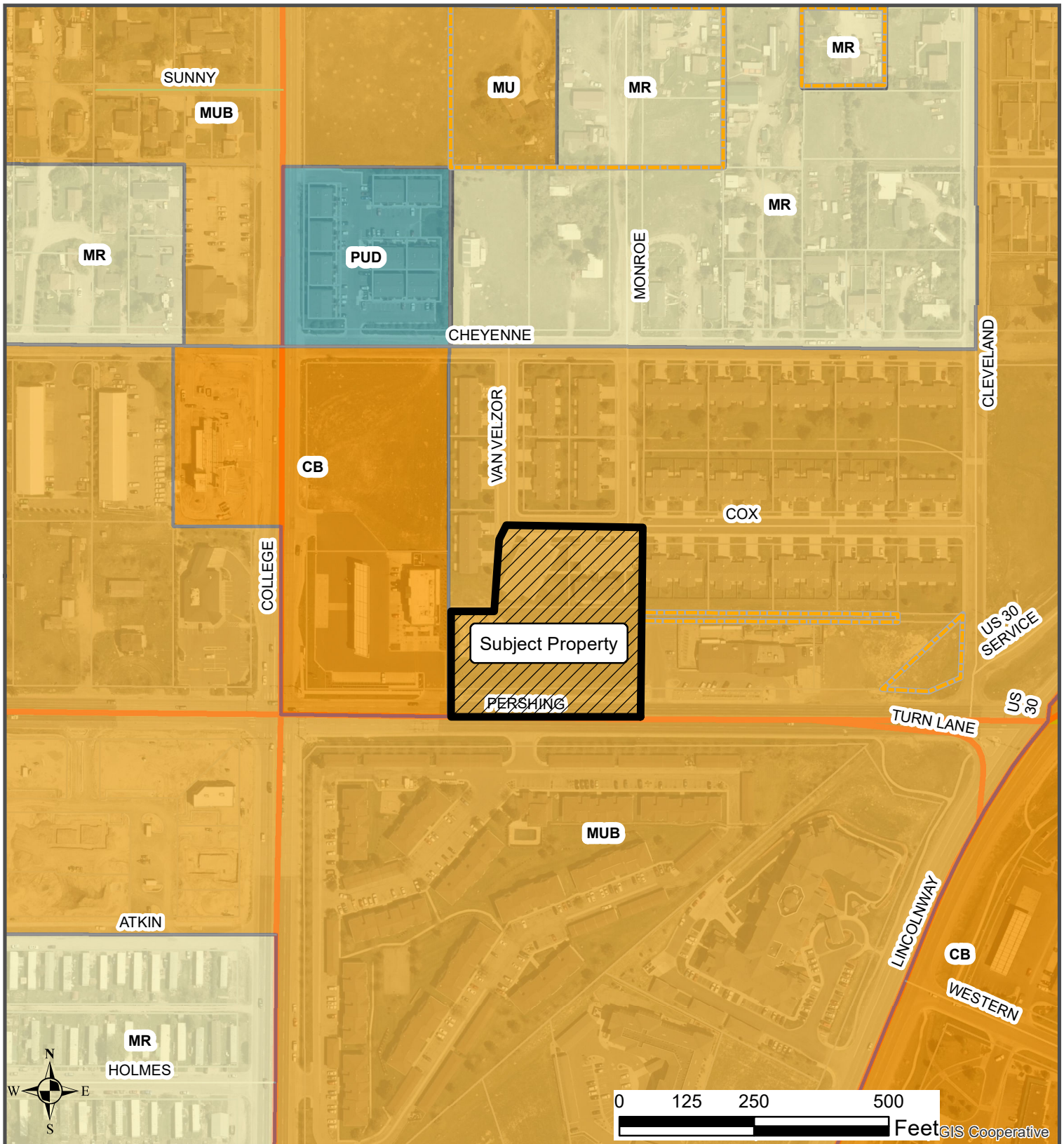
If the Commission acts contrary to staff's recommendation or modifies conditions of approval, the Commission shall cite specific reasons (based on the review criteria) for approval or denial.

STAFF RECOMMENDATION:

Staff recommends approval of the rezoning of the property from MUB Mixed-use Business Emphasis to CB Community Business.

ATTACHMENTS:

1. Current Zoning Map
2. Future Land Use Map
3. Master Application
4. Applicant Provided Zone Change Map



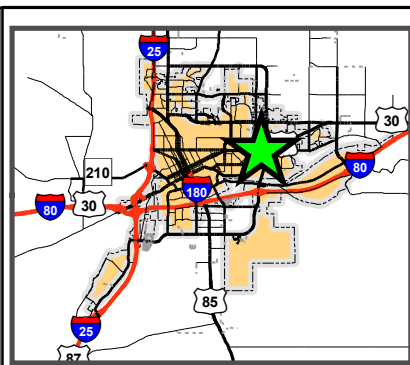
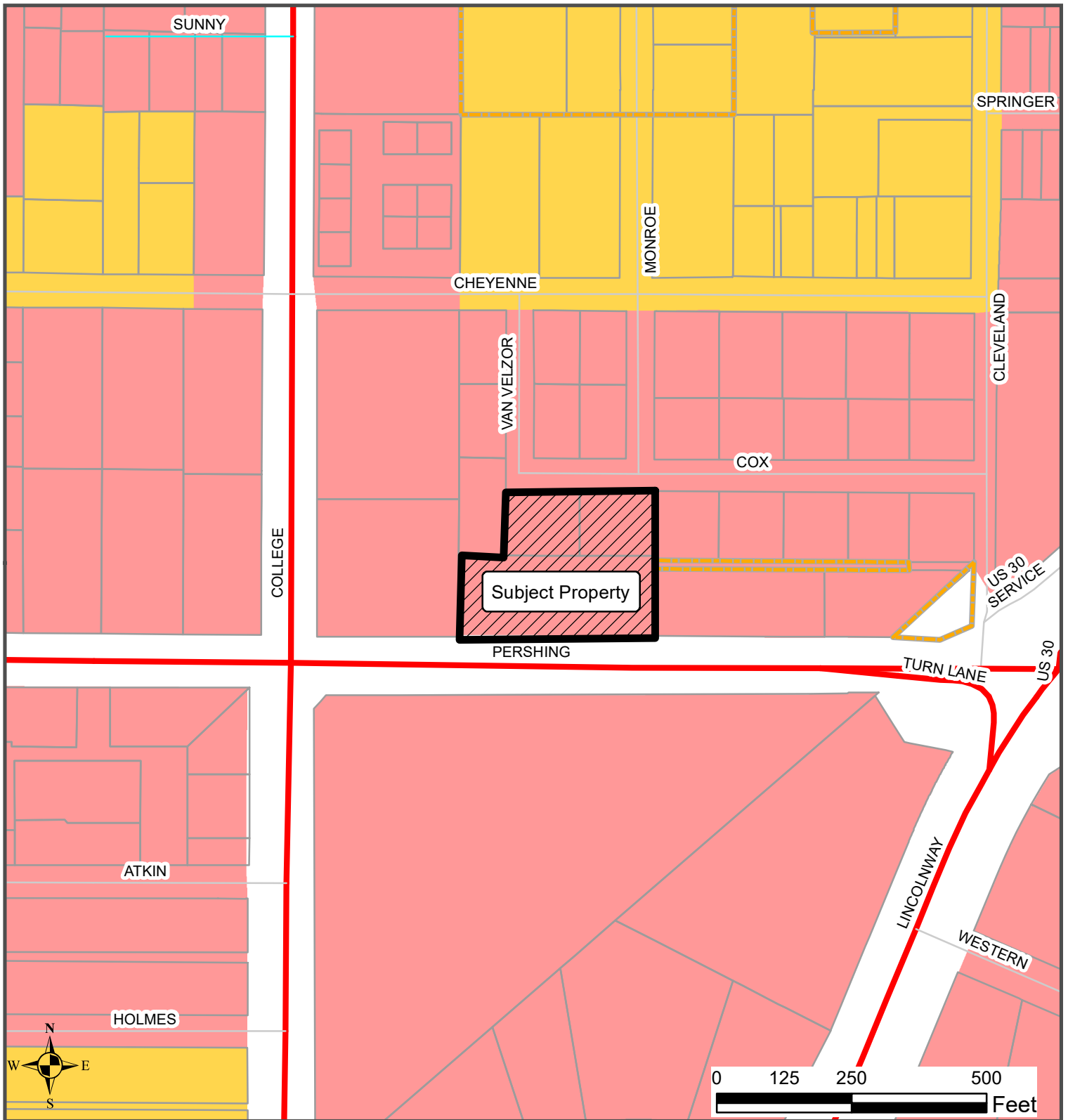
Attachment 1: Zoning Map UDC-22-00281

This map/data is made possible through the Cheyenne and Laramie County Cooperative GIS (CLCCGIS) Program and is for display purposes only. The CLCCGIS invokes its sovereign and governmental immunity in allowing access to or use of this data, makes no warranties as to the validity, and assumes no liability associated with the use or misuse of this information.

Legend

	Nov19_CityLimits		A-1 / Agricultural and Rural Residential
	Interstate		A-2 / Agricultural
	Principal Arterial		AG / City Agricultural
	Minor Arterial		MUR / Mixed Use Residential Emphasis
	Major Collector		CBD / Central Business District
	Minor Collector		CB / Community Business
	Local		NB / Neighborhood Business
	Private		MU / Mixed Use - County
	Platted not built		MUB / Mixed Use Business Emphasis
	HR / High Density Residential		MUE / Mixed Use Employment Emphasis
	MR / Medium Density Residential		HI / Heavy Industrial
	LR / Low Density Residential		LI / Light Industrial
	NR-2 / Neighborhood Residential - Med. Density		P / Public
	NR-3 / Neighborhood Residential - High Density		AD / Airport District
	AR / Agricultural Residential		PUD / Planned Unit Development
			X / Exempt

GIS Cooperative



Attachment 2: Land Use Map UDC-22-00281

This map/data is made possible through the Cheyenne and Laramie County Cooperative GIS (CLCCGIS) Program and is for display purposes only. The CLCCGIS invokes its sovereign and governmental immunity in allowing access to or use of this data, makes no warranties as to the validity, and assumes no liability associated with the use or misuse of this information.

Legend

Nov19_CityLimits	Agricultural/Rural	Industrial
Interstate	Rural Residential	Central Business District
Principal Arterial	Urban Transition Residential	Community Business
Minor Arterial	Urban Residential	Public and Quasi-Public
Major Collector	Mixed-Use Residential	Military/Federal
Minor Collector	Mixed-Use Commercial	Open Space and Parks
Local	Mixed-Use Employment	
Private		
Platted not built		
Ownership		

Planning and Development: Zoning Map Amendment Application

Submission date: **26 July 2022, 2:30PM**
Receipt number: **36**
Related form version: **10**

General Information

Applicant Name: **T C Solutions - Ben Hornok**

Applicant Address: **1903 S Greeley Hwy #257**

Applicant City: **Cheyenne**

Applicant State: **WY**

Applicant Zip Code: **82007**

Applicant Phone: **307-274-5569**

Applicant Email: **benhornok@tcsolutions365.com**

Representative Name: **T C Solutions - Ben Hornok**

Representative Address: **1903 South Greeley Hwy #257**

Representative City: **Cheyenne**

Representative State: **WY**

Representative Zip Code: **82007**

Representative Phone: **307-274-5569**

Representative Email: **benhornok@tcsolutions365.com**

Owner Name: **Cheyenne Housing Authority**

Owner Address: **PO Box 20046**

Owner City:	Cheyenne
Owner State:	WY
Owner Zip Code:	82003
Owner Phone:	307-633-8333
Owner Email:	ghancock@cheyennehousing.org
Who is the primary contact regarding this application?	Representative
Letter of Authorization	Cheyenne PD Letter of Authorization[7840].pdf
Project Location (Street Address or General Location):	North of E Pershing Blvd, South of Cox Ct and Van Velzor Ave, 4125 Cox Ct
Assessor's Parcel ID number(s)	14662741801400, 14662741801200, 14662741801300
Total Project Area	2.03 acres
Existing Zoning	MUB - Mixed-use Business Emphasis
Requested Zoning	CB - Community Business

Application-Specific Questions

The construction of a new Senior Activity Center, to be located on East Pershing Blvd. east of North College Drive, was recently approved by the Voters of Laramie County. The project consists of renovating the existing Senior Center located on Cox Court and tying it into the planned new Senior Activity Center. The subject property is presently zoned MUB and is located within the City of Cheyenne. The requested Zone Change to CB Zone, Community Business, would result in an extension of the present CB Zone to the west of the Senior Activity Center site.

A primary reason for requesting a CB Zone in lieu of the existing MUB Zone is: The Minimum Building Facade Width as a Percentage of East Pershing Boulevard's Lot Frontage Width. The desired CB Zone has no minimum building facade width in relationship to the East Pershing Blvd. lot frontage width while the present MUB Zone has a minimum building width of 60% of the East Pershing Blvd. lot frontage. This MUB Zone required building width minimum would significantly reduce the planned parking area and would alter the ideal connection proposed from the new building addition to the existing building along the eastern property line. The planned building facade width on East Pershing Boulevard, within the requested CB Zone, is approximately 25% of the lot frontage, much less than the required minimum 60% width in the existing MUB Zone. Additionally, it is not practical to locate the primary building entrance on East Pershing Blvd., which is also a requirement in the present MUB Zone. The site layout and the somewhat steep grades of the site preclude this main building entry location at the lot frontage.

Rande Pouppirt, aia

Pouppirt Architects & Construction

Notification Letter

[neighbor-notification-letter.pdf](#)
[300 ft Addresses.pdf](#)

Supporting Documents / Information

[Senior Center MeetingSummary6.22.2022 \(1\).pdf](#)
[Pouppirt Architects Rendering Cheyenne Senior Citizen Activity Center\[8395\].pdf](#)

Review Criteria

The application is in accordance with the development policies and physical patterns identified in the Comprehensive Plan.

Acknowledgement of this review criteria

The application is compatible with nearby property, specifically considering existing zoning, the Comprehensive Plan, and any other official plans and policies created under the guidance of that plan for these areas.

Acknowledgement of this review criteria

The suitability of the subject property for development according to the standards and uses of the existing zoning district, compared to the suitability of the subject property for development according to the standards and uses of the proposed zoning district.

Acknowledgement of this review criteria

The ability of the subject property and surrounding vicinity to be developed according to the Subdivision Standards in Article 4 considering the proposed zoning.

Acknowledgement of this review criteria

The ability of the application to support the Intent and Applicability statements of the proposed zoning district, and achieve the Design Objectives of any specific standards.

Acknowledgement of this review criteria

The ability of all potential future development to meet all applicable standards for development in the proposed zoning district, including other development options in the event that any specific development proposed in association with the application is not executed after approval.

Acknowledgement of this review criteria

The review and recommendations of other reviewing bodies

Acknowledgement of this review criteria

Whether the application will harm the public health, safety, or general welfare.

Acknowledgement of this review criteria

Signature / Certification

Applicant Signature

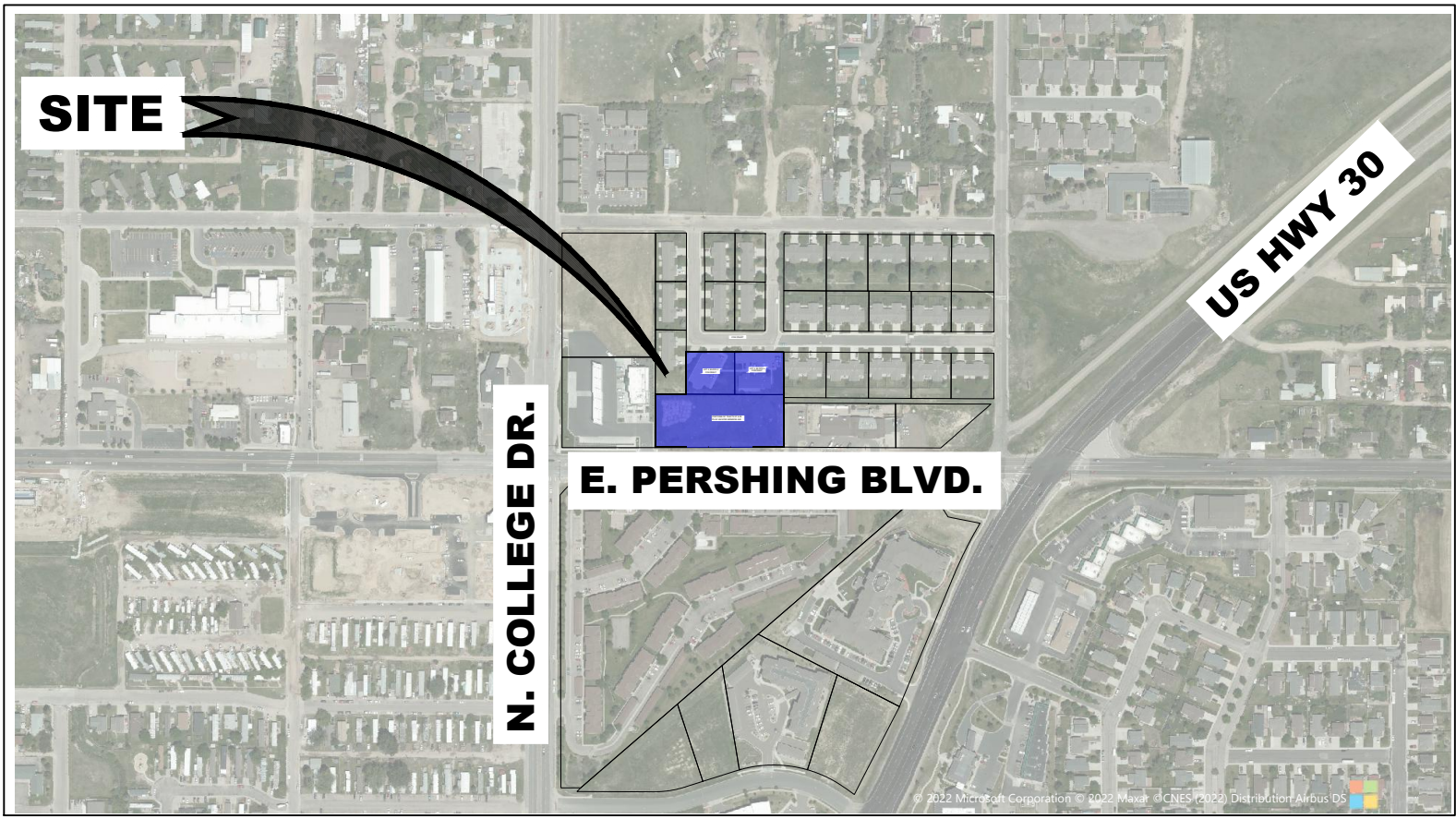
Name of signatory: Ben Hornok

A handwritten signature in black ink, appearing to read 'B. Hornok', written over a horizontal line.

[Link to signature](#)

Please enter an email address for an email receipt.

benhornok@tcsolutions365.com



OWNER
CHEYENNE HOUSING AUTHORITY
P.O. BOX 20046
CHEYENNE, WY 82003
3304 SHERIDAN STREET
CHEYENNE, WY 82009

OWNER'S REPRESENTATIVE
TC SOLUTIONS
CHEYENNE, WY
PHONE: (307) 274-5569
CONTACT: BEN HORNOK
BENHORNOK@TCSOLUTIONS365.COM

PROJECT ARCHITECT
RANDE POUPPIRT
POUPPIRT ARCHITECTS
2400 DUNN AVENUE
CHEYENNE, WYOMING 82001
PH: 307.778.8236
RANDE@POUPPIRT.COM

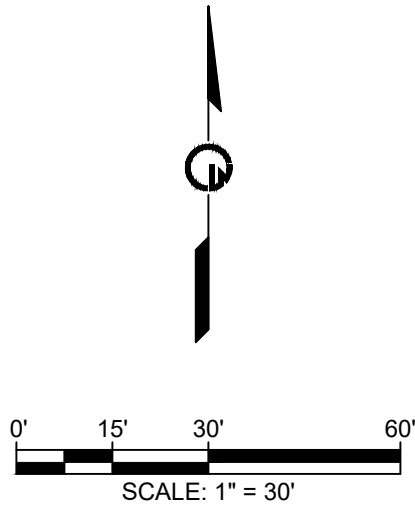
ENGINEER
CIVILWORX, LLC
1807 CAPITOL AVENUE STE 206
CHEYENNE, WY 82001
PH: 307-514-1012
CONTACT: KELLY HAFNER
KELLY.HAFNER@CIVILWORXENG.COM

PROPERTY DESCRIPTION:
S1/2 S1/2 TRACTS 27 & 28 SUNNYSIDE ADDITION, 2ND FILING; PLUS (BK 1345, PG 800, 8640 SQ') VACATED MONROE AVE BETWEEN SAID S1/2 S1/2 TRACTS AND COX SUBDIVISION LOT 6, BLK 2 & LOTS 4 AND 5, BLOCK 4, FOXCREST SUBDIVISION, CITY OF CHEYENNE, LARAMIE COUNTY, WY.
SAID PARCEL IS 2.03 ACRES +/-

ZONING INFORMATION		
PROPOSED USE:	COMMERCIAL	
EXISTING LAND-USE:	COMMERCIAL / VACANT COMMERCIAL	
	ZONING	LAND USE
SITE:	MIXED USE BUSINESS	COMMERCIAL
NORTH:	MIXED USE BUSINESS	RESIDENTIAL
SOUTH:	MIXED USE BUSINESS	RESIDENTIAL
EAST:	MIXED USE BUSINESS	COMMERCIAL
WEST:	COMMUNITY BUSINESS	COMMERCIAL

LEGEND:	
	EXISTING MIXED USE BUSINESS (MUB) ZONE DISTRICT
	EXISTING COMMERCIAL BUSINESS (CB) ZONE DISTRICT
	PROPOSED COMMUNITY BUSINESS ZONED PARCELS

- ADJACENT PROPERTY OWNERSHIP**
- 1 NORTH COLLEGE PROPERTIES, LLC
3315 N COLLEGE DR
CHEYENNE, WY 82001
 - 2 NORTH COLLEGE PROPERTIES, LLC
3315 N COLLEGE DR
CHEYENNE, WY 82001
 - 3 FOXCREST LIMITED PARTNERSHIP, LLC
3326 VAN VELZOR AVE
CHEYENNE, WY 82001
 - 4 HOUSING AUTHORITY OF THE CITY OF CHEYENNE
4205 COX CT
CHEYENNE, WY 82001
 - 5 FOUR BAR D FAMILY, LLC
4218 E PERSHING BLVD
CHEYENNE, WY 82001



CHEYENNE SENIOR RECREATION CENTER
ZONE CHANGE MAP

ZONE CHANGE

SHEET NUMBER
ZM01

1 OF 1 SHEETS

SCALE
VERTICAL: N/A
HORIZONTAL: 1" = 30'

JOB NUMBER
C22014

1807 Capitol Avenue
Suite 206
Cheyenne, WY 82001
(307) 514-1012
CivilWorxeng.com

NO.	BY	DATE	REVISIONS

CAUTION
The engineer preparing these plans will not be responsible for, or liable for, unauthorized changes to or uses of these plans. All changes to the plans must be in writing and must be approved by the preparer of these plans.

DATE SUBMITTED: 7/20/2022

PREPARED FOR: CHEYENNE HOUSING AUTHORITY